

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxvii.]  
*Order Confirmation (Lincoln Extension) Act, 1920.*



**CHAPTER cxvii.**

An Act to confirm a Provisional Order of the Minister of Health relating to Lincoln. A.D: 1920.  
[4th August 1920.]

**W**HEREAS the Minister of Health has made the Provisional Order set forth in the schedule hereto under the provisions of the Local Government Act 1888 :

51 & 52 Vict.  
c. 41.

And whereas it is requisite that the said Order should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order as altered and set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Lincoln Extension) Act 1920. Short title.



A.D. 1920.

SCHEDULE.

CITY OF LINCOLN.

*Lincoln  
Order.*

*Provisional Order made in pursuance of the Local Government  
Act 1888 for extending a County Borough.*

To the Mayor Aldermen and Citizens of the City of Lincoln;—  
To the Court of Quarter Sessions for the said City;—  
To the Justices of the Peace for the said City;—  
To the Justices of the Peace for the Administrative County of the  
Parts of Kesteven in Quarter Sessions assembled;—  
To the County Council of the Parts of Kesteven;—  
To the Urban District Council of Bracebridge;—  
To the Rural District Council of Branston;—  
To the Guardians of the Poor of the Lincoln Union;—  
To the Parish Councils of Boutham Bracebridge Heath North  
Hyckham and Skellingthorpe;—  
To the Overseers of the Poor of the Parishes of Boutham  
Bracebridge Bracebridge Heath Lincoln North Hyckham and  
Skellingthorpe;—  
And to all others whom it may concern.

51 & 52 Vict.  
c. 41.

WHEREAS by virtue of Section 54 of the Local Government Act 1888  
the Minister of Health is empowered to make a Provisional Order for  
altering the boundary of any Borough and by such Order to divide or  
alter any electoral division;

And whereas the City of Lincoln is a County of itself and a  
County Borough within the meaning of the Local Government Act  
1888 and is for the purposes of that Act situate in the Administrative  
County of the Parts of Lindsey and the inhabitants are a body cor-  
porate by the name of the Mayor Aldermen and Citizens of the City  
of Lincoln and act by the Council of the said City which now consists  
of the Mayor (who is also an Alderman) five other Aldermen and  
eighteen Councillors and the said City is for the purposes of the  
election of Councillors divided into six wards termed respectively the  
Abbey Ward the Carholme Ward the Castle Ward the Minster Ward  
the Park Ward and the Witham Ward;

And whereas the said City is co-extensive with the Parish of  
Lincoln and is an Urban Sanitary District of which the Mayor



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Aldermen and Citizens acting by the Council are the Urban Sanitary Authority; A.D. 1920.

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And whereas the said City has a separate court of quarter sessions commission of the peace police force recorder sheriff and coroner;

And whereas in pursuance of the Education Act 1902 the Council of the said City are the local education authority; 2 Edw. 7. c. 42.

And whereas the unrepealed provisions of the Local Acts specified in Part I. of the Schedule to this Order and of the Confirmation Acts specified in Part II. of the said Schedule so far as the last-mentioned Acts relate to the Orders specified in that Schedule are in force in the said City;

And whereas the provisions of—

(a) The Infectious Disease (Prevention) Act 1890;

53 & 54 Vict. c. 34.

(b) The Public Health Acts Amendment Act 1890;

53 & 54 Vict. c. 59.

(c) The Museums and Gymnasiums Act 1891;

54 & 55 Vict. c. 22.

(d) The Baths and Washhouses Acts 1846 to 1899; and

9 & 10 Vict. c. 74.

10 & 11 Vict. c. 61.

41 & 42 Vict. c. 14.

45 & 46 Vict. c. 30.

59 & 60 Vict. c. 59.

62 & 63 Vict. c. 29.

55 & 56 Vict. c. 53.

56 Vict. c. 11.

1 Edw. 7. c. 19.

9 & 10 Geo. 5. c. 93.

(e) The Public Libraries Acts 1892 to 1919;

are in force in the said City;

And whereas the Council of the said City are the authority for the execution of the Burial Acts 1852 to 1906 within the City;

15 & 16 Vict. c. 85.

6 Edw. 7. c. 44.

And whereas the Urban District of Bracebridge in the Administrative County of the Parts of Kesteven immediately adjoins the said City and is co-extensive with the Parish of Bracebridge and is subject to the jurisdiction of the Urban District Council of Bracebridge;

And whereas the Parishes of Boultham Bracebridge Heath North Hyckham and Skellingthorpe in the Administrative County of the Parts of Kesteven are contributory places in the Rural District of Branston and are subject to the jurisdiction of the Rural District Council of Branston and one Rural District Councillor is elected for each of the Parishes of Boultham Bracebridge Heath and Skellingthorpe and two Rural District Councillors are elected for the Parish of North Hyckham;

And whereas the provisions of the Infectious Disease (Prevention) Act 1890 and the provisions of Part III. of the Public Health Acts Amendment Act 1890 which are applicable to Rural Districts are in force in the said Rural District;

And whereas the Parishes of Boultham Bracebridge Heath and Skellingthorpe immediately adjoin the said City and the Parish of North Hyckham immediately adjoins the said Urban District of Bracebridge and the Parish of Skellingthorpe;



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A.D. 1920.      And whereas the Parishes of Boultham Bracebridge Heath North  
*Lincoln*      Hyckham and Skellingthorpe are rural parishes within the meaning of  
*Order.*      the Local Government Act 1894 for each of which a Parish Council  
56 & 57 Vict.      has been established ;  
c. 73.

3 & 4 Will. 4.      And whereas the Lighting and Watching Act 1833 has been  
c. 90.      adopted in the Parishes of Boultham and Bracebridge Heath  
respectively ;

And whereas the Parishes of Boultham Bracebridge Bracebridge  
Heath Lincoln North Hyckham and Skellingthorpe are included in the  
Lincoln Union and one hundred and five guardians are elected for  
that Union two guardians are elected for the Parish of Bracebridge  
twenty-five guardians are elected for the Parish of Lincoln and the  
Rural District Councillors elected respectively for the Parishes of  
Boultham Bracebridge Heath North Hyckham and Skellingthorpe are  
the representatives of those Parishes on the Board of Guardians of the  
Lincoln Union ;

And whereas in pursuance of the Education Act 1902 the Parishes  
of Boultham Bracebridge Bracebridge Heath North Hyckham and  
Skellingthorpe form part of the area of the County Council of the  
Administrative County of the Parts of Kesteven as the local education  
authority ;

And whereas the Parishes of Bracebridge and Bracebridge Heath  
comprise the Bracebridge Electoral Division of the Administrative  
County of the Parts of Kesteven the Parishes of Boultham and  
Skellingthorpe are included in the Skellingthorpe Electoral Division  
of that County and the Parish of North Hyckham is included in the  
Waddington Electoral Division of that County :

51 & 52 Vict.      Now therefore the Minister of Health in pursuance of the powers  
c. 41.      given to him by Sections 54 and 59 of the Local Government Act  
1888 and by all other powers enabling him in that behalf hereby  
orders that from and after the date of the Act of Parliament confirming  
this Order the following provisions shall take effect :—

**Definitions.**

Art. I. In this Order—

- (1) The expression "the Minister" means the Minister of Health ;
- (2) The expression "the commencement of this Order" means the Ninth day of November One thousand nine hundred and twenty ;
- (3) The expression "the existing City" means the City of Lincoln as it existed immediately prior to the commencement of this Order ;



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- (4) The expression "the City" means the existing City as extended by this Order;
- (5) The expression "the Corporation" means as the context requires the Mayor Aldermen and Citizens of the existing City or of the City acting by the Council;
- (6) The expressions "the County" and "the County Council" mean respectively the Administrative County of the Parts of Kesteven and the County Council of that County;
- (7) The expression "the maps" means the two maps each marked "Map of the City of Lincoln as extended by the Lincoln (Extension) Order 1920" and sealed with the official seal of the Minister of Health;
- (8) The expressions "the Urban District" and "the Urban Council" mean respectively the Urban District of Bracebridge the area whereof is coloured yellow on the maps and the Urban District Council of that District;
- (9) The expressions "the Rural District" and "the Rural Council" mean respectively the Rural District of Branston and the Rural District Council of that District;
- (10) The expression "the added areas" means the Urban District and the parts of the Rural District added to the existing City by this Order;
- (11) The expression "the added part of Bracebridge Heath" means the part of the Parish of Bracebridge Heath which is coloured brown on the maps the expression "the excluded part of Bracebridge Heath" means the remaining part of that parish the expression "the added part of North Hyckham" means the part of the Parish of North Hyckham which is coloured purple on the maps the expression "the excluded part of North Hyckham" means the remaining part of that parish the expression "the added parts of Skellingthorpe" means the parts of the Parish of Skellingthorpe which are coloured blue on the maps and the expression "the excluded part of Skellingthorpe" means the remaining part of that parish;
- (12) The expressions "the existing Parish of Boultham" (the area whereof is coloured green on the maps) "the existing Parish of Bracebridge" "the existing Parish of Bracebridge Heath" "the existing Parish of Lincoln" "the existing Parish of North Hyckham" and "the existing Parish of Skellingthorpe" mean in each case

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the parish as it existed immediately prior to the commencement of this Order and the expressions "the Parish of Bracebridge Heath" "the Parish of Lincoln" "the Parish of North Hyckham" and "the Parish of Skellingthorpe" mean in each case the parish as altered by this Order;

(13) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894;

(14) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same and the expression "the Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same;

(15) The expression "the Burial Acts" means the Burial Acts 1852 to 1906;

(16) The expression "the Paving &c. Act of 1828" means the Local Act passed in the ninth year of the reign of His late Majesty King George the Fourth and intituled "An Act for Paving Lighting Watching and Improving the City of Lincoln and the Bail and Close of Lincoln in the County of Lincoln and for regulating the Police therein";

(17) The expressions "the Confirming Act of 1866" "the Confirming Act of 1870" "the Lincoln Order 1866" and "the Lincoln Order 1870" mean respectively the Local Government Supplemental Act 1866 (No. 4) the Local Government Supplemental Act 1870 the Order relating to Lincoln dated the 22nd day of June 1866 and the Order relating to Lincoln dated the 9th day of May 1870 thereby respectively confirmed;

(18) The expression "the Act of 1907" means the Public Health Acts Amendment Act 1907.

Commence-  
ment of  
Order.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred and twenty:

Date of  
operation of  
Order for  
registers of  
electors &c

Provided that for the purposes of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year One thousand nine hundred and twenty and



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of the revision of the basis or standard of the county rate of the County this Order shall operate from the date of the Act of Parliament confirming this Order: A.D. 1920.  
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 Order.*

Provided also that for the purposes of Sections 20 22 23 24 and 26 of the Act of 1888 and for the purposes of the Local Taxation (Customs and Excise) Act 1890 as amended by any subsequent Act and as affected by any Order in Council made under Section 6 of the Finance Act 1908 the existing City shall be deemed not to have been altered and the added areas shall be deemed to continue part of the County until after the Thirty-first day of March One thousand nine hundred and twenty-one. Date of operation for purposes of certain grants and Local Taxation Licences.  
 53 & 54 Vict.  
 c. 60.  
 8 Edw. 7. c. 16

Art. III.—(1) The boundary of the existing City the area whereof is coloured pink on the maps shall be altered so as to include in addition to that area the Urban District and so much of the Rural District as comprises the existing Parish of Boultham the added part of Bracebridge Heath the added part of North Hyckham and the added parts of Skellingthorpe. Extension of  
 City.

(2) The boundary of the City shall be that shown by the red line on the maps and the added areas shall for the purposes of the Municipal Corporations Acts and for all other purposes be included in the City and also in the County of the City of Lincoln and shall for the purposes of the Act of 1888 be included in the County Borough and the provisions of the Act of 1888 shall apply to the City as if Lincoln (Parts of Lindsey) and Lincoln (Parts of Kesteven) had been specified in the Third Schedule to that Act as the counties in which the City should be deemed for the purposes of the Act of 1888 to be situate.

Art. IV.—(1) One of the maps shall be deposited in the office of the Minister and the other shall be deposited by the town clerk of the existing City at his office within fourteen days after the date of this Order. Copies of the map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the Clerk to the County Council to the Clerk to the Urban Council to the Clerk to the Rural Council to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to the Postmaster-General to the Board of Trade to the Minister of Transport to the Minister of Agriculture and Fisheries and to the Electricity Commissioners. Deposit of  
 maps.

(2) Copies of or extracts from the map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as primâ facie evidence of the contents of the map so Copies of  
 map to be  
 evidence.



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A.D. 1920. far as it relates to the boundaries of the City and the map shall at all  
*Lincoln* reasonable times be open to inspection by any person liable to any rate  
*Order.* leviable within the City and any such person shall be entitled to a  
copy of or extract from the map certified by the town clerk to be  
true on payment of a reasonable fee to be determined by the Cor-  
poration All fees so received shall be carried to the credit of the  
city fund.

Powers and  
duties of  
justices &c.  
extended.

Art. V.—(1) For the purposes of any Commission of assize oyer  
and terminer or gaol delivery the service of juries the making of jury  
lists sheriff lieutenant militia and territorial force the added areas shall  
form part of the County of the City of Lincoln.

(2) The powers and duties of the quarter sessions recorder sheriff  
coroner and clerk of the peace of the existing City of the justices of  
the peace appointed for the existing City and of the clerk to those  
justices and of the police constables and other peace officers of the  
existing City shall extend to and apply throughout the City:

Provided that every person committing an offence in any part of  
the added areas prior to the commencement of this Order shall be  
tried and dealt with as if this Order had not been made:

Provided also that every proceeding which prior to the com-  
mencement of this Order has been begun by or before any justice or  
justices or coroner in relation to any matter arising in or concerning  
any part of the added areas may be carried on continued or completed  
in like manner and with the like incidents and consequences as nearly  
as may be as if this Order had not been made.

Transfer of  
lists of pri-  
soners &c.

(3) Lists of prisoners writs process and particulars and all records  
and documents relating to or to be executed in connexion with any  
action or proceeding pending or existing at the commencement of  
this Order and appertaining to the added areas shall be delivered  
turned over or transferred and signed in like manner in all respects  
so nearly as circumstances admit as is required to be done upon a  
new sheriff coming into office in like manner as if the sheriff of the  
City were as respects the added areas the new sheriff in succession to  
the sheriff of the County of Lincoln.

Qualification  
of members  
of county  
and borough  
councils.  
4 & 5 Geo. 5.  
c. 21.

Art. VI. For the purposes of the application to the City of the  
provisions of the County and Borough Councils (Qualification) Act  
1914 the added areas shall be deemed to have always formed part of  
the City.

Number of  
Councillors  
and Alder-  
men.

Art. VII. The number of Councillors of the City shall be increased  
from eighteen to twenty-one and the number of Aldermen of the City  
shall be increased from six to seven.



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Art. VIII. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:—

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*Order.*

Division into  
wards.

(1) For the purposes of the election of Councillors the City shall be divided into seven wards:

(2) The six existing wards and the number of Councillors respectively apportioned thereto shall remain unaltered:

(3) The added areas shall be formed into a new ward named the Foss Ward:

Constitution  
of new ward.

(4) Three councillors shall be assigned to the Foss Ward.

Art. IX. The first election of Councillors for the Foss Ward constituted by this Order shall be held on the First day of November One thousand nine hundred and twenty and the Mayor of the existing City or some other person appointed by him shall be the returning officer at the election for that ward. The first election of the additional Alderman of the City shall take place on the Ninth day of November One thousand nine hundred and twenty.

First election  
of Council-  
lors for new  
ward and  
additional  
Alderman.

Art. X.—(1) The Councillors elected for the City in the year One thousand nine hundred and twenty for the Foss Ward shall retire as follows:—

Retirement  
of Council-  
lors for new  
ward and  
additional  
Alderman  
elected in  
1920.

(a) The Councillor for the ward who is elected by the smallest number of votes on the First day of November One thousand nine hundred and twenty-one:

(b) The Councillor for the ward who is elected by the largest number of votes on the First day of November One thousand nine hundred and twenty-three:

(c) The other Councillor for the ward on the First day of November One thousand nine hundred and twenty-two:

Provided that if for any reason it is doubtful which of the Councillors ought to retire on the dates above specified the Council of the City shall on the Ninth day of November One thousand nine hundred and twenty or at the next following quarterly meeting and not later by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the Councillors shall go out of office on the dates above specified respectively.

(2) The additional Alderman elected for the City in the year One thousand nine hundred and twenty in pursuance of this Order shall retire on the Ninth day of November One thousand nine hundred and twenty-six.

Art. XI.—(1) The unrepealed provisions of the Paving &c. Act of 1828 the Confirming Act of 1866 so far as it relates to the Lincoln.

Local Acts  
and Orders.



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A.D. 1920. Order 1866 and the Confirming Act of 1870 so far as it relates to the  
*Lincoln*  
Order. Lincoln Order 1870 shall be repealed.

(2) Subject to the provisions of this Order the unrepealed provisions of the Local Acts and of the Confirmation Acts specified in the Schedule to this Order so far as the last-mentioned Acts respectively relate to the Provisional Orders specified in that Schedule and of any other Local Act (including any Local Act passed or to be passed during the present session of Parliament) or of any other Provisional Order duly confirmed by Parliament and affecting the existing City or the Corporation as the same respectively are in force within the existing City at the commencement of this Order shall extend and apply to the City and any reference therein to the existing City and the Corporation shall be deemed to refer to the City and the Corporation thereof:

Provided that any order made by the Corporation in pursuance of Section 54 of the Lincoln Corporation (Water &c.) Act 1908 with respect to the making assessing and levying of general district rates in the same manner as borough rates which immediately before the commencement of this Order is in force and applies to future rates in the existing Parish of Lincoln shall as regards rates made after that date have effect as if any reference in it to the existing City or the existing Parish of Lincoln extended and applied to the City and the Parish of Lincoln.

Byelaws &c.

Art. XII. Subject to the provisions of this Order—

(1) All byelaws orders and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing City shall thenceforth apply to the City until or except in so far as any such byelaws or orders or regulations or list of tolls or table of fees and payments or scale of charges may be altered or repealed:

(2) All byelaws orders and regulations made by the County Council or the Urban Council or the Rural Council or their predecessors and in force immediately before the commencement of this Order in any part of the added areas shall on that date cease to be in force except as regards any work which has been begun before that date or as regards any work which has not been so begun but for which plans have been approved before that date by the Council of the District in which the part is situated or have been sent to the surveyor or clerk to that Council one month at least before that date and have not been



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disapproved by the Council As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the City were referred to therein instead of the Council of the District in which the part is situated and that District Provided that any proceedings which if this Order had not been made might have been taken by the County Council or the Urban Council or the Rural Council for any offence committed before the commencement of this Order against any byelaws orders and regulations which by virtue of this subdivision cease to be in force may be taken by the Corporation as if those byelaws orders and regulations had remained in force and the Corporation had been substituted therein for that Council.

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*Lincoln  
Order.*

Art. XIII.—(1) The town clerk and all other officers and servants of the Corporation of the existing City who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the City and shall hold their offices by the same tenure as at that date.

Town clerk  
and other  
officers con-  
tinued.

(2) The auditors of the existing City who are in office at the commencement of this Order shall continue in office and shall for the purposes of the Municipal Corporations Acts be the City auditors until the next ordinary day of election of City auditors.

City auditors.

Art. XIV.—(1) The provisions of subsection (13) of Section 118 and of Section 119 of the Act of 1888 shall apply to all persons who at the commencement of this Order hold office as officers or servants of the Urban Council with such modifications as are necessary to make those provisions applicable to the said officers and servants and to the Corporation.

Compensa-  
tion to exist-  
ing officers.

(2) Every clerk to justices and coroner and every officer or servant of or paid by the County Council or of or paid by the Standing Joint Committee of the County and every other officer or servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss and in determining the said compensation and the compensation payable to any person who becomes entitled to compensation in pursuance of subdivision (1) of this Article regard shall be had to the conditions



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A.D. 1920. and other circumstances required by subsection (1) of Section 120 of  
*Lincoln* the Act of 1888 to be had in regard in cases of compensation under  
*Order.* that section and the compensation shall not exceed the limit therein  
mentioned and shall be paid in the case of any such officer or servant  
whose office or employment relates wholly or partly to sanitary purposes  
as defined by the Public Health Act 1875 out of the district fund and  
general district rate of the City and in every other case out of the  
city fund and city rate of the City and the provisions of sub-  
sections (2) to (7) of section 120 of the Act of 1888 shall apply with  
the necessary modifications Provided that the non-acceptance of any  
office shall not be a bar to the right of any officer to compensation.

(3) For the purposes of subdivision (2) of this Article any clerk  
to justices coroner or officer or servant to whom that subdivision  
applies and whose services are dispensed with or whose salary is  
reduced by the Secretary of State or the County Council or the Standing  
Joint Committee of the County or any other authority including the  
Corporation within five years from the commencement of this Order  
because his services are not required or his duties are diminished in  
consequence of this Order and not on the ground of misconduct shall  
be deemed to have suffered a direct pecuniary loss in consequence of  
this Order.

(4) No person shall be entitled to claim or receive both compen-  
sation for any direct pecuniary loss by abolition of office or by  
diminution or loss of fees or salary and a superannuation or retiring  
allowance in respect of the same period of service and the same  
pecuniary loss.

Actions &c.  
not to abate.

Art. XV.—(1) Any action or proceeding or any cause of action  
or proceeding which at the commencement of this Order is pending  
or existing by or against the Urban Council or by or against the  
Rural Council in relation exclusively to any part of the added areas  
shall not be in anywise prejudicially affected by reason of the making  
of this Order but may be continued prosecuted and enforced by or  
against the Corporation of the City.

Saving for  
contracts &c.

(2) Anything duly done or suffered and all contracts deeds bonds  
agreements and other instruments (subsisting at the commencement  
of this Order) entered into or made by the Urban Council or by the  
Rural Council or their predecessors in relation exclusively to any part  
of the added areas shall be of as full force and effect against or in  
favour of the Corporation of the City and may be continued and  
enforced as fully and effectually as if instead of the Urban Council or  
the Rural Council or their predecessors the Corporation had done or  
suffered the same or been a party thereto.

Corporation  
property &c.

Art. XVI. Subject to the provisions of this Order all property  
vested in the Corporation at the commencement of this Order for the



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benefit of the existing City shall by virtue of this Order be held by the Corporation for the benefit of the City and the Corporation shall hold enjoy and exercise for the benefit of the City all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing City and all liabilities which on the date aforesaid attach to the Corporation in respect of the existing City shall from and after that date attach to them in respect of the City.

A.D. 1920.

*Lincoln  
Order.*

Art. XVII. The Urban Council shall liquidate as far as practicable before the commencement of this Order all current debts and liabilities incurred by them.

Liquidation of  
current debts  
and liabilities  
by Urban  
Council.

Art. XVIII. Subject to the provisions of this Order—

- (1) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Urban Council and all property and liabilities which immediately before the said date are vested in or attach to the Rural Council in relation exclusively to any part of the added areas shall by virtue of this Order be transferred to and vest in and attach to the Corporation as Urban Sanitary Authority and any property and liabilities vested in or attaching to the Rural Council in relation to any part of the added areas conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888:
- (2) The Urban Council shall at the commencement of this Order be abolished and cease to exist and the Rural Council shall cease to exercise any powers or have any duties within any part of the added areas:
- (3)—(a) All arrears of rates made by the Urban Council and all other payments which at the commencement of this Order are due or owing to the Urban Council in respect of hereditaments in any part of the added areas may be collected and recovered by the Corporation;
- (b) All arrears of rates made by the Overseers of the existing Parishes of Boultham Bracebridge Heath North Hyckham and Skellingthorpe for the purposes of the Public Health Acts or for highway expenses or for the purposes of the Lighting and Watching Act 1833 which at the commencement of this Order are due or owing in respect of hereditaments in any part of the added areas may be collected and recovered as if this Order had not been made and when collected and recovered shall be applied towards the discharge of any precept of the

Property &c.  
of Urban  
and Rural  
Councils.

Cesser of  
jurisdiction of  
Urban and  
Rural Councils.

Arrears of  
rates &c.



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Rural Council which at that date shall be in force and not satisfied or in the case of any rates made in any part of the existing Parish of Bracebridge Heath for the purposes of the Lighting and Watching Act 1833 towards defraying any expenses of the Parish Council of that parish under the last-mentioned Act and any balance of any such rate shall be paid to the Corporation:

Adjustment  
of balances.

- (4) Any balances in the hands of the Overseers of the Parishes of Bracebridge Heath North Hyckham and Skellingthorpe at or immediately before the commencement of this Order and any sum collected after that date by Overseers of the Poor in respect of any rate made before that date and levied upon any rateable hereditament in any of those parishes shall be a matter for adjustment under Section 62 of the Act of 1888:

Adaptation  
of provisions  
as to adjust-  
ment.

- (5) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that section shall have effect as if in subsections (5) (6) and (7) thereof the expression "Council" included any authority affected by this Order or by anything done in pursuance of this Order and as if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Minister may sanction:

- (6) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order so far as it relates to the abolition or the alteration of the area of any existing parish that section shall have effect—

(a) as if the Overseers of the Parishes of Bracebridge Heath Lincoln North Hyckham and Skellingthorpe and the persons who immediately before the commencement of this Order were the Overseers of the Parishes of Boultham and Bracebridge or if the circumstances of the case so require any persons who may be substituted for those persons by an order of the



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Minister were within the meaning of the said section as applied by this Article authorities affected by this Order;

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(b) as if the poor rate or any other rate leviable in pursuance of the said section as applied by this Article were substituted for any fund mentioned in the section; and

(c) as if for subsections (6) and (7) of the said section there were substituted the subsections hereunto appended that is to say:—

“(6) If it is necessary for the purpose of giving effect to any agreement or award for an adjustment that a separate rate shall be levied in part of a parish only the agreement or award may authorise the making of such a separate rate as if it were a poor rate and as if the part of the parish on which it is to be levied were a whole parish.

“(7) Any capital sum paid for the purposes of any adjustment or in pursuance of any order or award of an arbitrator shall be applied by such person in such manner and for such purpose as the Minister of Health may authorise or direct.”

Art. XIX.—(1) The liability for repayment of any moneys borrowed by the Urban Council or of so much of any of those moneys as will be owing at the commencement of this Order and for the payment of the interest thereon shall by virtue of this Order be transferred to and attach to the Corporation.

*Mortgage  
debts of  
Urban Coun-  
cil and Cor-  
poration.*

(2) So much as will at the commencement of this Order be outstanding in respect of the moneys borrowed as aforesaid by the Urban Council together with so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the district fund and general district rate of the existing City shall by virtue of this Order be charged upon the district fund and general district rate of the City and so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the city fund and city rate of the existing City shall by virtue of this Order be charged upon the city fund and city rate of the City.

(3) All borrowed moneys to which this Article applies shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.



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(4) Nothing in this Order shall prejudice or affect any mortgage or other security which has been granted in respect of any borrowed moneys the liability for the repayment of which shall be transferred to the Corporation in pursuance of subdivision (1) of this Article or the powers of any person entitled under any such mortgage or other security to enforce the same as if this Order had not been made and where for any such purpose it is necessary to continue the exercise of a power which would have existed but for this Order the power may continue to be exercised as if this Order had not been made and the general district rate of the City shall for any such purpose be levied and have effect in substitution for the rate which would have been leviable if this Order had not been made.

*Adoptive  
Acts.*

Art. XX. The provisions of the Infectious Disease (Prevention) Act 1890 the Public Health Acts Amendment Act 1890 the Museums and Gymnasiums Act 1891 the Baths and Washhouses Acts 1846 to 1899 and the Public Libraries Acts 1892 to 1919 shall be in force in and apply to the City as if the same had been adopted for the City.

Art. XXI. Subject to the provisions of any order which the Minister or the Secretary of State may make after the commencement of this Order—

*Powers under  
section 33  
and sec-  
tion 34 of  
Act of 1894.*

(1) The provisions of any order made by the Local Government Board or the Minister before the commencement of this Order under Section 33 or Section 34 of the Act of 1894 shall be deemed to have effect as if any reference in those provisions to the existing City the existing Parish of Lincoln or any parish wholly comprised within the existing City extended and applied to the City and the Parish of Lincoln; and

*Powers un-  
der Public  
Health Acts  
Amendment  
Act 1907.  
7Edw.7.c.53.*

(2) The provisions of any order made by the Local Government Board or the Minister or by the Secretary of State before the commencement of this Order and declaring to be in force in the existing City any Parts or Sections of the Act of 1907 shall have and shall be deemed always to have had effect as if any reference in those provisions to the existing City extended and applied to the City and as if the said Parts and Sections were accordingly declared to be in force in the City.

*Orders made  
under Shop  
Hours Act  
1904 and  
Shops Act  
1912.  
4Edw.7.c.31.  
2Geo.5.c.3.*

Art. XXII. Any order made under the Shop Hours Act 1904 under the Shops Act 1912 or any other Act providing for the closing of shops and in force immediately before the commencement of this Order in any area affected by this Order shall subject to the provisions of any of the above Acts remain in force and apply to the area to which it applied immediately before the commencement of this Order.



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Art. XXIII. For the purposes and subject to the provisions of the A.D. 1920.  
 Education Acts 1870 to 1919—

- (1) All public elementary schools (including the sites and school-houses) provided by the local education authority and any other land acquired and held by the local education authority for purposes of public elementary education and situate in the added areas and the furniture fittings books and apparatus belonging to the County Council of any public elementary school in the added areas shall by virtue of this Order be transferred to and vested in the Corporation as the local education authority for all the estate and interest therein of the County Council as the local education authority and all contracts debts and liabilities which at the commencement of this Order are existing or are owing by or attach to the County Council in respect exclusively of any of the public elementary schools in the added areas or of the said land furniture fittings books or apparatus or with respect to the officers teachers and servants of any of the said public elementary schools in the added areas shall by virtue of this Order enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority:

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Order.*

Transfer of  
public ele-  
mentary  
schools &c. to  
Corporation.

Provided that Section 68 of the Act of 1894 shall apply with respect to any adjustment required for the purposes of this subdivision:

- (2) Subject to any adjustment which may hereafter be made the liability for repayment of so much of any loan raised exclusively in respect of any public elementary school (including the site and schoolhouse) and any other land furniture fittings or apparatus transferred to and vested in the Corporation by virtue of this Order as will be owing at the commencement of this Order and the liability for the payment of interest on that part of the said loan shall by virtue of this Order be transferred and attach to the Corporation as the local education authority and so much of any such loan as will be owing at the commencement of this Order shall be charged on the city fund and the city rate of the City and shall be repaid by the Corporation within the period if any for which that part of the loan was originally sanctioned or within which the said part of the loan is otherwise required to be repaid or is made repayable:

Mortgage  
debts in  
respect of  
transferred  
schools.



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*Order.*  
 Education  
 byelaws.

Managers.

Differential  
 rating.

Corporation  
 to be Burial  
 Board for  
 City.

County  
 police.

(3) Any byelaws in force in the existing City immediately before the commencement of this Order shall from and after that date apply to the City until revoked or altered and from and after that date any byelaws then in force in any part of the added areas shall cease to be in force :

(4) Any managers of any public elementary school in the added areas who were appointed by the County Council or by the Urban Council or any Parish Council shall vacate office at the commencement of this Order.

Art. XXIV. The total amount in the pound of the general district rate to be levied by the Corporation in any one year in the added part of Bracebridge Heath the added part of North Hyckham and the added parts of Skellingthorpe shall—

(a) during a period of seven years from the commencement of this Order be less by two shillings and sixpence ; and

(b) during a period of five years from the Ninth day of November One thousand nine hundred and twenty-seven be less by one shilling and sixpence

than the total amount in the pound of the general district rate levied by the Corporation in the same year in respect of any hereditament situate within the remainder of the area of the City.

Art. XXV. The Corporation shall be the Burial Board for the City and shall have within the City to the exclusion of any other burial authority all the powers duties and liabilities of a burial board under the Burial Acts Provided that no approval sanction or authorisation of the vestry of the Parish of Lincoln shall be required in respect of any act of the Corporation as the Burial Board as aforesaid.

Art. XXVI:—(1) At the commencement of this Order such number of the members of the police force of the County as shall be determined by agreement to be made as soon as practicable after the date of the Act of Parliament confirming this Order between the Standing Joint Committee of the County and the Watch Committee of the existing City or in default of any such agreement as shall be determined by a Secretary of State shall be transferred to and become part of the police force of the City Provided that no member of the police force of the County shall be transferred to or become a member of the police force of the City under this subdivision unless such member consents to be so transferred.

(2) Every member of the county police force so transferred shall hold office in the police force of the City upon the same tenure and upon the same terms and conditions as he would have held office in the county police force if this Order had not been made and while



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he performs the same or similar duties his remuneration emoluments and allowances and the pension (if any) to which he may be entitled shall not be less than they would have been if this Order had not been made.

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(3) The provisions of Section 15 (2) of the Police Act 1890 as amended by any subsequent Act shall extend and apply to and in relation to any member of the police force transferred under the powers of this Article as if that member had removed with the written sanction of the Chief Constable of the County.

53 & 54 Vict.  
c. 45.

Art. XXVII.—(1) In any case where the extension of the existing City by this Order affects the distribution of the proceeds of the local taxation licences or of the estate duty grant or of the Local Taxation (Customs and Excise) duties between the County and the City or between the County and the City on the one hand and any other County or County Borough on the other hand or any financial relations or questions between those areas or any adjustment which has been made in regard to the said distribution or financial relations or questions equitable adjustments may be made between the areas interested:

Adjustment  
of financial  
relations  
between  
County and  
County  
Boroughs.

For the purposes of this subdivision or of anything done or to be done in pursuance of this subdivision any reference in the said subdivision to the proceeds of licences or duties shall include a reference to the sums which in pursuance of subsection (4) of Section 17 of the Finance Act 1907 as amended by Section 6 of the Finance Act 1908 and Section 88 of the Finance (1909-10) Act 1910 and the Revenue Act 1911 or of any subsequent Act have been paid or will be payable in lieu of those proceeds.

7 Edw. 7.

c. 13.

8 Edw. 7.

c. 16.

10 Edw. 7.

c. 8.

1 Geo. 5. c. 2.

(2) Any such adjustment as is authorised by subdivision (1) of this Article may be made by agreement between the Councils of the City the Counties and the County Borough affected and if such adjustment has not been made before the Thirtieth day of September One thousand nine hundred and twenty-one then on the application of any of the Councils interested the Minister may if he thinks fit make the adjustment or appoint an arbitrator to make it.

(3) In any case in which an agreement for equitable adjustments as aforesaid has not been made the provisions of the Act of 1888 relating to adjustments between Administrative Counties and County Boroughs shall apply with the necessary modifications and the Minister or an arbitrator appointed by him as the case may be shall be substituted in those provisions for the Commissioners appointed under the Act of 1888 and notwithstanding anything in the provisions of this Order or of the Act of 1888 any such adjustment and the



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A.D. 1920. determination of any matter incidental or in relation thereto or consequent thereon shall when made by the Minister be deemed to be made by him otherwise than as an arbitrator and any arbitrator appointed by him shall be deemed to be an arbitrator within the meaning of Section 62 of the Act of 1888 and the provisions of the Act of 1888 shall apply accordingly:

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Provided—

(a) that in lieu of subsection (6) of Section 61 of the Act of 1888 subsections (1) and (5) of Section 87 of the Act of 1888 shall apply to any inquiries which may be directed by the Minister under this Article and to the costs of those inquiries; and

(b) that subsection (6) of Section 32 of the Act of 1888 shall apply to any agreement or award made under this Article.

Adjustment  
for purposes  
of Licensing  
(Consolidation)  
Act  
1910.

10 Edw. 7. &  
1 Geo. 5. c. 24.

(4)—(a) An equitable adjustment shall be made between the County and the City respecting the interest of the added areas in any compensation fund constituted under Section 21 of the Licensing (Consolidation) Act 1910 or under any enactment repealed by that Act.

(b) Such adjustment shall be made by agreement between the Compensation Authority (as defined by the Licensing (Consolidation) Act 1910) for the County and for the City within twelve months from the commencement of this Order or in default of agreement by an arbitrator appointed by the Secretary of State.

(c) For the purpose of such adjustment an arbitrator appointed by the Secretary of State shall be deemed to be an arbitrator within the meaning of Section 62 of the Act of 1888 and the provisions of that Act shall apply accordingly.

Insurance  
Committees.

Art. XXVIII.—(1) The Minister may at any time after the passing of the Act of Parliament confirming this Order by order make such provisions as appear to him to be necessary for transferring to the Insurance Committee for the City such of the property rights and liabilities of the Insurance Committee for the County as relate to persons resident in the added areas.

(2) An order made under this Article may authorise the Insurance Committee for the County to continue to act as Insurance Committee for the added areas until such date not being later than the thirty-first day of December One thousand nine hundred and twenty as may be specified in the order and may for that purpose postpone the operation of this Order so far as relates to the rights and duties of the respective Insurance Committees for the County and City until



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the date so specified and may provide for such financial adjustments and may contain such other consequential and supplementary provisions as may appear to the Minister necessary or expedient. A.D. 1920.  
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 Order.*

(3) An order under this Article shall have effect as if enacted in the National Insurance Act 1911 and may be revoked revised or amended by an order made in like manner as the original order. 1 & 2 Geo. 5.  
 c. 55.

(4) The persons who immediately before the commencement of this Order are members of the respective Insurance Committees for the County and the existing City shall be deemed to have been appointed or elected and shall be the members of the respective Insurance Committees for the County and City as altered by this Order.

Art. XXIX.—Subject to the provisions of Section 54 of the Act of 1888— *Electoral  
 Divisions  
 and County  
 Councillors.*

(1) The Bracebridge Skellingthorpe and Waddington Electoral Divisions of the County as diminished by the inclusion of the added areas in the City shall respectively continue to be Electoral Divisions of the County and the persons who immediately before the commencement of this Order are the County Councillors representing those Electoral Divisions respectively shall continue to represent those divisions as if they had been originally elected to represent those divisions as altered by this Order.

(2) No County Alderman or County Councillor in office immediately before the commencement of this Order shall be deemed to lose his qualification by reason of the alterations effected by this Order.

Art. XXX. The added part of Bracebridge Heath the added part of North Hyckham and the added parts of Skellingthorpe shall be separated from the existing parishes of which they respectively form part and with the existing Parishes of Boultham and Bracebridge shall be amalgamated with the existing Parish of Lincoln. *Parochial  
 alterations.*

Art. XXXI. Subject to the provisions of Section 60 of the Act of 1894 the following provisions shall have effect:— *Rural Dis-  
 trict Coun-  
 cillors and  
 Guardians.*

(1)—(a) The number of Guardians for the Lincoln Union shall be reduced from one hundred and five to one hundred and four:

(b) The Parish of Lincoln shall for the purposes of the election of guardians be divided into seven wards named respectively the Abbey Ward the Carholme Ward the Castle Ward the Foss Ward the Minster Ward the Park Ward and the Witham Ward which shall be respectively co-terminous in



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area with the wards bearing the same names into which the City is divided for the purposes of the election of Councillors and four guardians shall be assigned to each of the said Wards:

- (c) The person who at the commencement of this Order is holding the offices of Rural District Councillor and Guardian for the existing Parish of Boultham shall cease to hold the office of Rural District Councillor and that person together with the persons who at the said date are holding the office of Guardian for the existing Parish of Bracebridge shall respectively be deemed to have been elected for and shall represent the Parish of Lincoln upon the Board of Guardians of the Lincoln Union and those persons and the persons who at the said date are holding the office of Guardian for the existing Parish of Lincoln shall be allocated by the Guardians of the Poor of the Lincoln Union to the several wards of the Parish of Lincoln and when so allocated shall be deemed to have been elected and shall represent those wards respectively upon the Board of Guardians of the Lincoln Union:
- (2)—(a) The number of Rural District Councillors and Guardians for the Parish of North Hyckham shall be reduced to one and of the two persons who at the commencement of this Order are holding those offices for the existing Parish of North Hyckham one to be selected before the said date by the Rural Council shall cease to hold the said offices and the other person shall be deemed to have been elected and shall represent the Parish of North Hyckham upon the Rural Council and the Board of Guardians of the Lincoln Union:
- (b) The persons who at the commencement of this Order are holding the offices of Rural District Councillor and Guardian for the existing Parishes of Bracebridge Heath and Skellingthorpe shall respectively be deemed to have been elected for the Parishes of Bracebridge Heath and Skellingthorpe:
- (3) Subject as herein-before mentioned all the persons affected by this Article shall continue in office until the date upon which they would have retired if this Order had not been made.

Parish  
Councils.

Art. XXXII. Subject to the provisions of this Order—

- (1) The Parish Council of the existing Parish of Boultham shall cease to exist and any powers and duties transferred by the Act of 1894 to that Parish Council shall be vested



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in and imposed on the persons and authorities in whom they would be vested or on whom they would be imposed if the said parish had been a parish or included in a parish in the existing City on the appointed day within the meaning of the Act of 1894 and all property and liabilities held or incurred so far as regards the said existing parish for the purpose or by virtue of the said powers and duties shall by virtue of this Order be transferred to and vest in and attach to the persons and authorities aforesaid Any property or liabilities of the said Parish Council held or incurred otherwise than by virtue or for the purposes of the powers or duties aforesaid shall by virtue of this Order be transferred to and vest in and attach to the Corporation:

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- (2) The Parish Councils of the existing Parish of Bracebridge Heath the existing Parish of North Hyckham and the existing Parish of Skellingthorpe shall be deemed to have been elected and shall be the Parish Councils for the Parish of Bracebridge Heath the Parish of North Hyckham and the Parish of Skellingthorpe respectively.

Art. XXXIII. The accounts of the Urban Council and of the Parish Council of the existing Parish of Boultham and of their committees and officers shall be made up to the commencement of this Order and shall be audited by the District Auditor in like manner and subject to the like incidents and consequences as if this Order had not been made:

Audit of  
accounts of  
Urban and  
Parish Coun-  
cils.

Provided that the audit may in each case be held as soon as practicable after that date any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding and that any sum certified by the District Auditor to be due from any person shall be paid to the treasurer of the City and shall if necessary be a matter for adjustment under Section 62 of the Act of 1888.

Art. XXXIV. Until new valuation lists are in force the valuation lists of the existing Parishes of Boultham and Bracebridge and the portions of the valuation lists of the existing Parishes of Bracebridge Heath North Hyckham and Skellingthorpe which respectively relate to hereditaments in the added part of Bracebridge Heath the added part of North Hyckham and the added parts of Skellingthorpe shall be deemed to form part of the valuation list of the Parish of Lincoln and the remaining portions of the valuation lists of the existing Parishes of Bracebridge Heath North Hyckham and Skellingthorpe shall respectively be deemed to be the valuation lists of the Parishes of Bracebridge Heath North Hyckham and Skellingthorpe.

Valuation  
lists.



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Order.*  
County rate  
basis.

Art. XXXV.—(1) Subject to any future revision the basis or standard of the county rate for the County shall be altered—

(a) by the omission therefrom of the references to the total annual values of the property in the existing Parishes of Boultham and Bracebridge;

(b) by the deduction from the amount appearing therein as the total annual value of the property in the existing Parishes of Bracebridge Heath North Hyckham and Skellingthorpe of such a sum in each case as will represent the annual value of the property in the part or parts of the Parish which is included by this Order in the Parish of Lincoln.

(2) For the purposes of this Article the annual value of the property in the part or parts of a parish which is included by this Order in the Parish of Lincoln shall be the amount which bears the same relation to the total annual value of the existing parish as the assessable value of the property in the included part or parts of the existing parish bears to the total assessable value of property in the existing parish.

(3) For the purposes of this Article assessable value means one-half of the rateable value according to the valuation list for the time being in force of the agricultural land together with the rateable value according to that list of the buildings and other hereditaments not being agricultural land in the existing parish or in the part or parts included in the Parish of Lincoln as the case may require.

Saving for  
existing  
jury lists.

Art. XXXVI. For the purposes of the jury lists the parishes affected by this Order shall be deemed to continue unaltered until the next lists after the commencement of this Order come into force.

Settlement  
and removal  
of the poor.

Art. XXXVII. For any purposes connected with the settlement and removal of the poor in relation to cases affected by this Order the following provisions shall have effect that is to say:—

(1) Every person who at the commencement of this Order has acquired or is in the course of acquiring a settlement in any of the existing Parishes of Boultham Bracebridge Bracebridge Heath Lincoln North Hyckham and Skellingthorpe by reason of any residence completed or in the course of completion or of any act or thing done or in the course of being done or of any status condition right or privilege acquired or created or in the course of acquisition or creation—

(i) in any of the existing Parishes of Lincoln Boultham or Bracebridge; or



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(ii) in the part or parts of any of the existing parishes of Bracebridge Heath North Hyckham and Skellingthorpe included by this Order in the Parish of Lincoln ; or

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(iii) in the excluded part of Bracebridge Heath ; or

(iv) in the excluded part of North Hyckham ; or

(v) in the excluded part of Skellingthorpe ;

shall be deemed to have acquired or to be in the course of acquiring a settlement in the first and second cases in the Parish of Lincoln in the third case in the Parish of Bracebridge Heath in the fourth case in the Parish of North Hyckham and in the fifth case in the Parish of Skellingthorpe and in each case as if the existing parish or the specified part of the existing parish were and had always been the parish or a part of the parish in which by virtue of this Article the person shall be deemed to have acquired or to be in the course of acquiring a settlement :

- (2) Every person who at the commencement of this Order has acquired or is in the course of acquiring a status of irremovability from the Lincoln Union by reason of residence in any of the areas mentioned in paragraphs (i) to (v) of subdivision (1) of this Article shall be deemed to have acquired or to be in the course of acquiring the like status by reason of residence in the parish in which by virtue of subdivision (1) of this Article he is deemed to have acquired or to be in the course of acquiring a settlement.

Art. XXXVIII. Notwithstanding the alteration in the areas of the parishes effected by this Order all contribution orders made by the Guardians of the Poor of the Lincoln Union and all precepts made by the Rural Council before the commencement of this Order shall be as valid in law as if this Order had not been made.

*Saving for  
contribution  
orders and  
precepts.*

Art. XXXIX.—(1) All sums in respect of rates made by the Overseers of the Poor of the existing Parishes of Boutham and Bracebridge and due or owing at the commencement of this Order shall be collected and recovered by the Overseers of the Poor of the Parish of Lincoln.

*Arrears of  
rates.*

(2) All sums in respect of rates made by the Overseers of the Poor of the existing Parishes of Bracebridge Heath North Hyckham and Skellingthorpe and due or owing at the commencement of this Order shall be collected and recovered by the Overseers of the Poor of the Parishes of Bracebridge Heath North Hyckham and Skellingthorpe as if this Order had not been made.



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Registration  
of electors.

8 Geo. 5. c. 64

Art. XL.—(1) For the purposes of the register of local government electors of the City prepared next after the commencement of this Order in pursuance of the Representation of the People Act 1918 and of all matters connected with incidental to or consequent upon those purposes the added areas shall be deemed to have formed part of the City as from the first day of the qualifying period for that register.

(2) In the preparation of the autumn register for the year 1920 in pursuance of the Representation of the People Act 1918 so far as it relates to areas affected by this Order it shall be competent to the Registration Officer to frame the register in separate parts for each area which will constitute a registration unit from and after the commencement of this Order instead of in separate parts for each area constituting a registration unit before the commencement of this Order.

(3) If the register of local government electors for any local government electoral area affected by this Order and in force at the commencement of this Order is not so framed as to show the persons entitled to vote at an election to be held for any parish ward or other electoral division of the area the town clerk in the case of an election for a parish ward or electoral division within the City and the registration officer of the parliamentary county in the case of an election for a parish ward or electoral division outside the City shall make such alteration or re-arrangement of the register as may be necessary for the purposes of such election. It shall be the duty of the Overseers to render such assistance as may be required by the said town clerk or registration officer for the purpose of such alteration or re-arrangement.

(4) Where in the opinion of the Minister the circumstances so require the Minister may make such order as appears to him to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors.

Ecclesiastical  
divisions and  
charities.

Art. XLI. Nothing in this Order shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment.

Short title.

Art. XLII. This Order may be cited as the Lincoln (Extension) Order 1920.



[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxvii.]  
*Order Confirmation (Lincoln Extension) Act, 1920.*

The SCHEDULE above referred to.

A.D. 1920

*Lincoln  
Order.*

PART I.—LOCAL ACTS.

| Session and Chapter.                 | Title.                                                                                                       |
|--------------------------------------|--------------------------------------------------------------------------------------------------------------|
| 9 Geo. IV. c. xxiv. - -              | An Act for Lighting with Gas the City of Lincoln and the Bail and Close of Lincoln in the County of Lincoln. |
| 9 & 10 Vict. c. cxi. - -             | The Lincoln Waterworks Act 1846.                                                                             |
| 19 Vict. c. xii. - - -               | The Lincoln Waterworks Act 1856.                                                                             |
| 31 Vict. c. xxii. - - -              | The Lincoln Corporation (Canwick Common) Act 1868.                                                           |
| 33 & 34 Vict. c. lxxxvii. -          | The Lincoln City Commons Act 1870.                                                                           |
| 34 & 35 Vict. c. cxlix. - -          | The Lincoln Waterworks Act 1871.                                                                             |
| 36 & 37 Vict. c. cxx. - - -          | The Lincoln Gaslight and Coke Company's Act 1873.                                                            |
| 43 & 44 Vict. Session 2<br>c. lxxvi. | The Lincoln Gaslight and Coke Company's Act 1880.                                                            |
| 48 & 49 Vict. c. xlvi. - -           | The Lincoln Corporation Gas Purchase Act 1885.                                                               |
| 51 & 52 Vict. c. xcvi. - -           | The Lincoln Corporation Act 1888.                                                                            |
| 63 & 64 Vict. c. lxxxvii. -          | The Lincoln Corporation (Tramways &c.) Act 1900.                                                             |
| 8 Edw. 7. c. xxxiii. - -             | The Lincoln Corporation (Water &c.) Act 1908.                                                                |
| 5 & 6 Geo. 5. c. lxxvii. - -         | The Lincoln Corporation Act 1915.                                                                            |

PART II.—CONFIRMATION ACTS.

| Session and Chapter.        | Title.                                                                                | Order thereby confirmed.                                        |
|-----------------------------|---------------------------------------------------------------------------------------|-----------------------------------------------------------------|
| 43 & 44 Vict.<br>c. lxxxvi. | The Local Government Board's Provisional Orders Confirmation (Aberavon &c.) Act 1880. | The Order relating to Lincoln dated the 15th day of April 1880. |
| 44 & 45 Vict.<br>c. cxiv.   | The Tramways Orders Confirmation (No. 3) Act 1881.                                    | The Lincoln Tramways Order 1881.                                |
| 60 & 61 Vict.<br>c. lxii.   | The Electric Lighting Orders Confirmation (No. 2) Act 1897.                           | The Lincoln Electric Lighting Order 1897.                       |
| 6 Edw. 7.<br>c. cxxiii.     | The Local Government Board's Provisional Orders Confirmation (No. 11) Act 1906.       | The Lincoln Order 1906.                                         |
| 7 Edw. 7.<br>c. clii.       | The Local Government Board's Provisional Orders Confirmation (No. 2) Act 1907.        | The Lincoln Order 1907.                                         |

Given under the Official Seal of the Minister of Health this  
Twenty-eighth day of April One thousand nine hundred and  
twenty.

(L.S.)

F. J. WILLIS

Assistant Secretary Ministry of Health.

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